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May 31, 2018					
FEDERAL	MARITIME	COMMISSION			

FEDERAL MARITIME COMMISSION

DOCKET NO. 17-07

PORT ELIZABETH TERMINAL & WAREHOUSE CORP.

v.

THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY

REVISED SCHEDULING ORDER

On May 22, 2018, the parties filed a joint status report with competing proposed schedules ("JSR"). Complainant's proposed schedule includes deadlines for filing an amended complaint, a motion to compel discovery, dispositive motions, and a hearing. Respondent's proposed schedule includes deadlines for filing motions for summary judgment and for briefing.

This proceeding began with the filing of a notice of complaint and assignment on July 21, 2017. The scheduling order issued on September 19, 2017, required discovery to be completed by January 16, 2018. At the request of the parties, on January 23, 2018, the discovery deadline was extended to March 2, 2018. On April 17, 2018, an initial decision granting motion to partially dismiss complaint was issued. Exceptions to the initial decision were filed and the appeal is currently pending before the Commission. The joint status report addresses the schedule to resolve the remaining claim for a cease and desist order for violation of 46 U.S.C. §§ 41106(2), 41104(8), and 41104(9).

Complainant requests thirty days to submit an amended complaint. However, no motion to amend the complaint has been filed. It is not clear that the undersigned would have the authority to permit an amended complaint, particularly if it implicated the dismissed claims which are currently under review by the Commission. The joint status report does not indicate any basis for permitting an amended complaint. Therefore, this is not included in the schedule below.

Complainant requests two weeks to file a motion to compel additional discovery. However, the initial decision indicated that the joint status report should "address whether additional discovery is required given this decision limiting the issues in the proceeding." Complainant lists additional

discovery that it requests but does not provide any basis for needing the additional discovery. Extensive discovery has been completed, including “multiple depositions from both sides, thousands of pages of documents exchanged, as well as the exchange of expert reports from both sides.” JSR at 3-4. The discovery period has previously been extended. Although a motion to extend discovery was filed on March 1, 2018, a motion to compel was not filed for these documents. Giving consideration to the arguments in the joint status report as well as the status reports and other filings in this proceeding, the discovery period will not be further extended.

Complainant requests a hearing. Hearings are generally held through the filing of documents and the parties have not provided sufficient reason to alter that general practice. Complainant requests a deadline for dispositive motions and Respondent requests a deadline for motions for summary decision. Dispositive motions such as motions for summary decision are disfavored at the conclusion of a proceeding as they do not create any efficiencies for the parties or the agency. Accordingly, the parties should proceed to briefing on the merits.

For the reasons stated above, it is hereby:

ORDERED that the parties abide by the following schedule:

July 9, 2018	Complainant files brief, proposed findings of fact, and appendix.
Aug. 8, 2018	Respondent files opposition brief, proposed findings of fact, appendix, and responses to Complainant’s proposed findings of fact.
Aug. 23 , 2018	Complainant files reply brief and responses to Respondent’s proposed findings of fact.

The parties are reminded that a “scheduling order ‘is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.’” *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, “[p]arties cannot control an agency’s docket or procedures through agreement among themselves.” *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

The parties’ briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party’s] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact shall not count toward the page limit found in Rule 214(e).

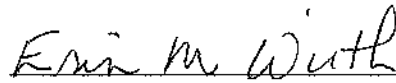
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; *e.g.*, a page number in the appendix.¹ The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (*e.g.*, Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (*e.g.*, Microsoft Word or WordPerfect) and provided by disk, flash drive, or email.
4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
 - a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2, CX 3 or RX 1, RX 2, RX 3, etc. The appendix should be secured in a three-ring binder;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (*see* 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims

¹ Parties must designate specific facts and provide the court with their location in the record. *Orr v. Bank of Am., NT & SA*, 285 F.3d 764, 775 (9th Cir. 2002). "General references [to evidence] without page or line numbers are not sufficiently specific." *S. Cal. Gas Co. v. City of Santa Ana*, 336 F.3d 885, 889 (9th Cir. 2003).

supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

5. **Service and Filing.** The parties are encouraged to serve and file hard copies of the documents required by this order by overnight delivery service.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.



Erin M. Wirth
Administrative Law Judge